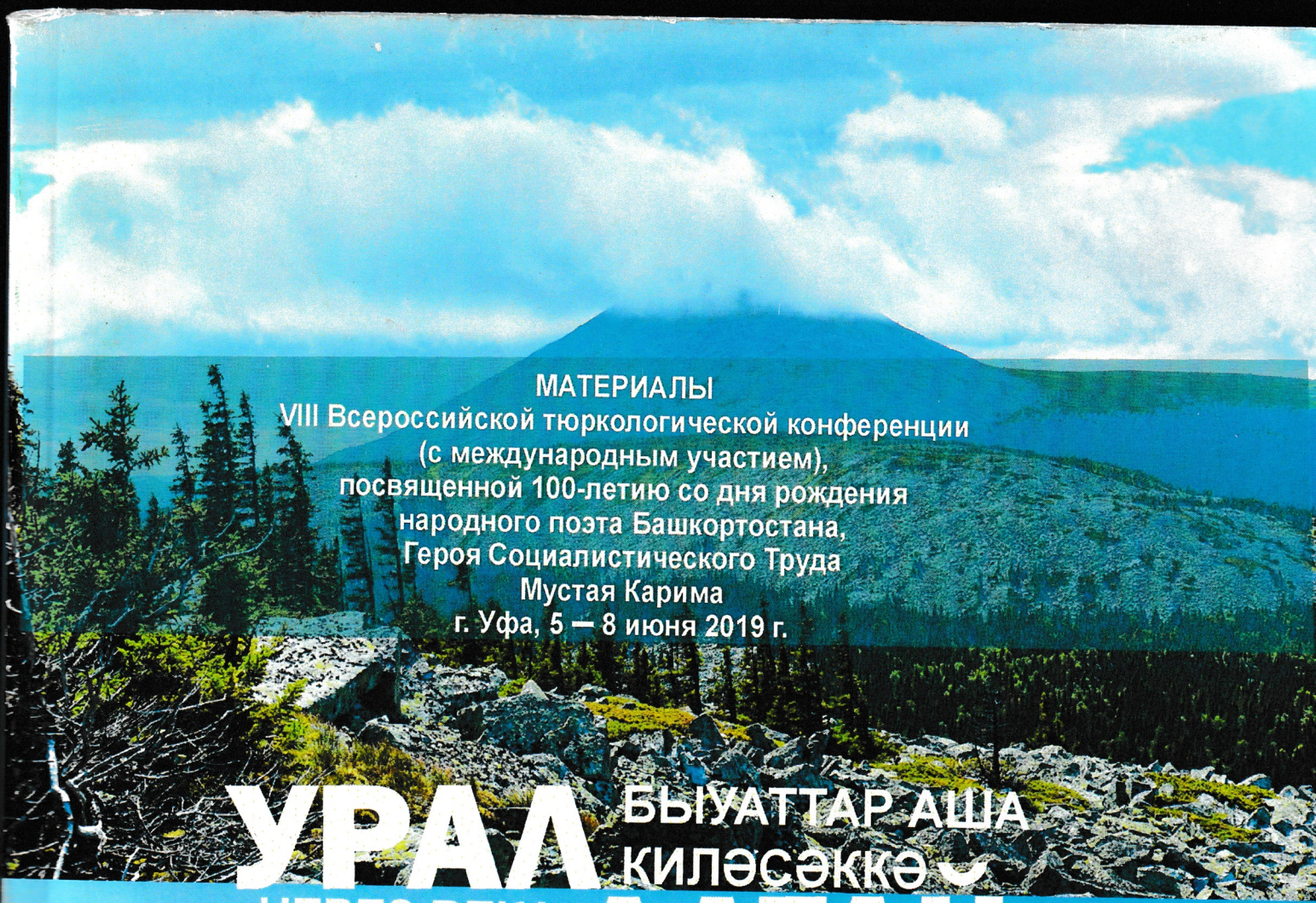


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ЧЕРЕЗ ВЕКА В БУДУЩЕЕ АЛТАЙ



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ORPHAN CHILD IN CUSTOMS AND TRADITIONS OF CENTRAL ASIAN NATIONS: ATTITUDE AND HISTORICAL EXPERIENCE

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Introduction. As is known that various customs and traditions are prevalent among the Central Asian nations from the earliest times. They express the daily life of people, their participation in the social life, original mentality, statute and unseen rules. These traditions passed down the ages from one generation to another are still alive in these latter days. In particular, one of the peculiar features of the Central Asian nations is great heartedness and mercifulness. Specifically, the tradition of compassion to the orphan child, to behave toward him with great heartedness regardless of his ethnic nationality, religion, social background has been formed since ancient times.

It is difficult to find among the research studies relating to the Middle Ages the ones concerned with the orphan child issue. In my opinion, this issue was "forgotten" or completely passed out of mind of the researchers a long time ago. There is also very small number of separate studies dealing with this issue. While many researchers are interested in the status of the orphan children who lived in the Middle Ages, in regulations concerned with them, it is also difficult to find the studies concerned with this issue. The available researches took stand at the "Gold Fund" a good while ago and registered in the list of the unique studies.

In this article, based on the samples of the oral folk arts, I have tried to analyze as far as possible the issue of the stance towards orphan children formed and developed among the people.

I have tried, based on some archive documents, to analyze a participation of orphan children in the everyday life, the rules related to them. Some of the archive documents were involved in the scientific consideration for the first time. For this reason, they were analyzed as much as possible and the first conclusions were made. In my opinion, in the future we should study consistently and thoroughly such documents concerned with the issue of orphan children. Through the study of these documents, we can resolve such issues as status of the orphan children, their place in the social, economic, political and everyday life. In particular, they give an opportunity to consider the rights of orphan children of underage or unwed parents, their protection system in the dynamics of customs, traditions and Islamic sharia laws. Especially, an issue of stance towards the orphan girls in the Islamic society holds a special place in the reveal of disputable aspects of the woman's place in the Muslim world, which are uncertain for us.

Orphan child and oral folk arts. Similarly to other nations, the various fairy tales, proverbs, eposes, riddles are also prevalent among the Central Asian nations. These samples of folk art passing from one generation to another are preserved until now as people's priceless wealth. In particular, the character of the orphan child holds a special place in the oral folk arts of the Central Asian nations. It represented as a main character of many legends, fairy tales and stories. Especially, in the fairy tales about girl orphaned after her mother's death and stepmother these two characters are opposed each other. In these tales a girl is shown as clever, kindhearted

the stepmother is shown as a hard-hearted and tyrannous woman as contrasted with the girl. e can cite as an example one of the Uzbek fairy tales – "*Zumrad and Qimmat*". This fairy tale is famous among the people at the age of seven to seventy years. Short description of the fairy le is as follows: The father of the girl named *Zumrad* orphaned after her mother's death had rried the woman who had the daughter named *Qimmat*. *Qimmat* was a petted, capricious and girl, spoiled by her mother. All day long *Zumrad* was working as a housewife, but stepmother Qimmat gave her a bad time. As a result, the stepmother persuaded her husband to left *Zumrad* the forest. *Zumrad* has met in the forest the good old woman and achieved with her assistance victory over the stepmother. *Zumrad* may be named as an Uzbek Cinderella.

The fate of the girl and her brother orphaned after the mother's death is sadder than the describing *Zumrad*'s fate. The tale tells about one man becoming a widower after his wife's with son and daughter and getting married another woman. After a while, the woman became egnant and demanded her husband to kill his son and cook him. The stymied husband killer his and cook him for the wife. Early in the morning the girl saw in the yard the bones of her other, having cried and collected them. She put the bones to the bag and hanged up them to the berry. The bones turned to turtledove. The sister asked the bird to sing. In return, the bird asked to give it two needles. As a result, the bird killed the stepmother and the father by these needles. nally, the bird has passed again into the beautiful boy [5, P. 186].

Of course, the fairy tales characters as those in *Zumrad*'' helped to form in children such atures as diligence and kind-heartedness. The characters of orphaned brother and sister assisted have in remembrance on the necessity to be good-hearted to each other. The triumph of good er evil holds the important place in strengthening the confidence, faith, love of parents and love country.

The boys orphaned after the death of mother or father are rare as characters of the fairy es, but they a main characters in the folk eposes. In particular, the epos of *Gur ugli /Son of the Grave/* which is prevalent among the Central Asian nations is one of such eposes. The main haracter of the epos is *Gur ugli,* who is epic character of not only Central Asian nations, but also Siberian Tatars, Turks of Bulgaria, the Iranian Azerbaijani, Turkmens of Stavropol, Uzbeks of fghanistan. [8]. It is also noteworthy that various versions of this epos are prevalent in Central sia. According to the epos, *Gur ugli* was born in the grave by the woman named *Bibi Hilol* who ied with six-month fetus. He grew fed at first by his mother and later on – by the mare owned by he herdsman named *Rustam*. Later on, the herdsman *Rustam* adopted him. *Gur ugli* became the rong, clever and athletic fellow. He earned the people's respect by his heroism. The special mphasis in this epos is put on the esteem of horses, demonstration of kindness to it common for he ancient Turkic nations. The similarity between the main character of the epos and his horse as shown fairly. In particular, the horse of *Gur ugli* named *Girkuk* was motherless from the eventh days of its birth. This horse was born by the mare that fed *Gur ugli*. Therefore, *Gur ugli* red this horse with special care... [8].

Gur ugli was the impersonation of high moral concepts of the people's dreams and this is he idealized character. Particularly, his unusual birth and childhood was presented with rich rtistic and fantastic performance. When these parts of the epos were recited by the *bahshi narrator/* that influenced on people's hearts and souls. Over the course of history, the eposes milar to *Gur ugli* appeared as a link between the past and the future, filling the people's souls ith kindness. In addition, they were of great significance for education of children as brave, ourageous and faithful people.

The proverbs also hold a special place in the oral folk arts of the Central Asian nations. long with expression of the folk wisdom and smartness, it also in a manner reflects the vast xperience in the everyday life. In particular, the proverbs are used in the Uzbek oral arts and terature to the present day depending on the situations and events occurred. Particularly, we can ind many proverbs with regard to the orphan child. "*the fatherless orphan is far better rather than*

motherless is almost death". This proverb also can be perceived when you make a conclusion based on the fate of girls similar to *Zumrad*. On the other side, it may represent that the mother's kindness and dedication are slightly prevalent over the same father's emotions. Because the child takes mother's loving kindness with mother's milk. In particular, the Islamic *Ulemas* also noted based on their experience: "mother's milk flows from her breast and this place is close to the heart. Moreover, the heart is a place of kindness and love. Therefore, the mother is kind-hearted to her child. The father's fluid flows from the upper part of the back and this place is far from the heart. [4, P. 528]. Here also the specific role of the father in upbringing of the child should be noted. In addition, the following and other proverbs exist: "*The orphan is source of petties*", "*When the orphan eats, his nose bleeds*". We have no opportunity to discuss them separately within one article. The people with vast experience – grandfathers or grandmothers, fathers or mothers often applied these proverbs in everyday life. This, along with aiming the children to be watchful and modest, also assisted to prevent cases that can occur in the life, to access correctly the situation.

In addition to the abovementioned factors, according to the customs and traditions of the Central Asian nations, the trespass to the orphan's property was considered a grievous sin. Such views certainly relate to the religion of Islam. Indeed, people who came to the funeral of the orphan's mother or father even did not sit to the table with foods. This deems to refrain from the share of the orphan [6, P. 92]. In this regard the following proverbs appeared: *"when you go near the orphan's home, shake your shoe from stuck dust"*, *"the orphan's share will dry up seven rivers"*, *"the orphan's share is the God's arrow"*.

Records on orphan children: rights and etiquette. Papers concerning orphan children can also be found in the archives of the former Central Asian states – the Emirate of Bukhara, and the khanates of Khiva and Kokand. Most of these records bear a date of beginning of the 19th – 20th centuries. They vary in context and format, and can be categorized as follows:

1. Adoption or custody *(vasiylik)* of an orphan child;
2. The rights for the orphan's inheritance;
3. Orphans' marriage issues;
4. Orphans brought up in the royal residences.

Above documents were mainly registered on a qadi-system basis, thus they were compiled within the framework of the Hanafi school thought of Sunni Islam, which are predominant in Central Asia. In dealing with issues, from the perspective of Islamic law (*fiqh*), they [qadis, the Islamic judges] referred to methods and stories of the scholars of this school.

According to the qadi documents children left without their parent or father and/or mother were usually referred to as *saghir* (the Arabic word for *junior; infant; kid*). The word, in Central Asia, especially among Uzbeks and Tajiks, meant *yetim* (orphan) [7, p. 271]. On rare occasions, the word *saghir* followed the names of minor children whose parents were not dead. Therefore, each use of the word should be identified through consideration of the context.

In most cases, qadis entrusted the orphan care to the child's close relatives. This right, first, was granted to mother in case if father had passed away, or vice versa. If they both died, the childcare rights would go to the maternal grandmother [4,1996, p. 523]. This was practiced also when mother abandoned the child, or married to another man. Furthermore, child's age was also taken into account. If an infant was breast-fed, either a paternal or maternal grandmother would take care of him. When they couldn't adopt the infant for some reasons, a maternal or paternal aunt would take the kid under her guardianship. In this case, aunts must have had direct ties of kinship to the child's either parent. Moreover, they had the right to breast-feed the infant. Breastfeeding term was allotted based on Qur'an verses and the hadiths of Prophet (pbuh).

According to Abu Hanifa (669–767), the duration time was 30 months (two and a half yers), while Abu Yusuf (died 798) and Muhammad ibn Hasan Shaybani believed it to be two years [1, p.749]. Based on the Islamic Sharia laws and Hanafi School a breast-fed infant had never been taken away by force from the mother. However, it was asserted to do so if the mother was found not legit to look after a child. This was due to her apostate, immoral, cheating and other inappropriate behavior [4, p. 523].

The adoption of orphans by their relatives (in certain cases by unrelated people) has been registered like in the aforementioned cases. In such processes the child's paternal and maternal relatives, other contenders for the child, witnesses and qadi would took part. People who wished to be adopters were required to comply with certain terms and conditions. Such as, able in mind, experienced to a certain degree, moral and possibly elderly people would be chosen as valid.

Sometimes when a boy reached certain age, his paternal relatives, grandfather or uncle, took him under their guardianship. Some scholars judged this age to be seven, and some nine years [4, p. 526]. Besides, a boy of this age was able to choose whom he would like to stay with. In addition, taking a child into one's custody was associated with the inheritance issues, too. If the orphan had a great amount of inheritance, the relatives would not let the child go easily.

The mother or the maternal grandmother was the rightful one to bring up and educate a female child until she reached puberty (started having periods). Women were considered more expert to teach a girl to do housework and to educate her to commonly accepted feminine behaviour. After the girl reached puberty, she was handled to her father in accordance with the law. Some scholars say this practice intended to protect her from both verbal and physical threats [4, p. 527]. In addition, giving a daughter in marriage to a right man, maintaining her with housekeeping equipments and material support were, mainly, part of the father's responsibility. Prohibition of women's public activity in society might have been a reason for it. Because such activities as inquiring about the potential son-in-law, allocating the amount of *mahr* (money or asset a bridegroom gives to his fiancée upon marriage), receiving the *qalin* (money or asset a bridegroom gives to the family of his fiancée upon marriage) were mostly led by men.

For instance, the following record reads that how a puberty age girl was given under the guardianship of her father in accordance with the law: *"In this case, Dur Podshoh beka (Miss), maiden, having come of age 9, is no longer in need of her mother's guardianship. Hereby, her father, Uroz, declares to take her under his own guardianship. Hence, based on the Sharia, he, being one of the closest (or the only one) relative of hers, will get his demand, getting custody of hers, fulfilled ..."* [3, D. 35].

Unfortunately, the record doesn't tell us the specifics of this event. Therefore, we can't tell whether the mother mentioned in this record is a real mother of the girl or one of her relatives. Because a woman, who brought up a child, was referred to as "mother" despite of not having given a birth. Also, it's worth mentioning that even if the parents had got divorced the rules almost applied the same way. The parents of the girl, mentioned in the record, could have been divorced, we don't know. If it's true, then such children would be noted as the members of the broken families. Central Asian peoples, as well as Uzbeks, used the term *"tirik yetim"* (alive orphan) to refer to these children.

It is high time to mention the custom to engage boy and girl from their early age in family relations in Central Asia. This of course relates to objective and subjective reasons. One of these reasons relates to giving *qalin* (in some cases *mahr)* by groom to the bride. Because parent used to pay a part of *qalin (property or thing which is given by groom to bride while marriage)* to girl until their children grow up. If girl or boy is orphan, if they own certain part of property in this case the *levirate* i.e. interfamilial marriage relations are implemented. Of course, this custom was not always followed.

As it was mentioned before *protector* played an important role when marrying orphan. In most cases, the person who made *guardianship* to orphan child acted as *protector*. This usually was a brother, uncle and close relatives. Here you may see marriage document of two orphan: *"certifying the contract of marriage document Ibodulloh Avaz, son of Niyoz, married Yoqut beka, daughter of Sadulloh who is orphan to her native uncle Niyoz Muhammad, son of Bobo who is orphan. Marriage property of girl i.e. 9 pieces of gold was given as a mahri muajjal (prepaid payment of marriage property), and the rest 9 pieces of gold was given as a mahri muvaddjal (postponed payment of marriage property). Date: 6-zulhijja 1282 /22 of April 1865 year."* [2, P. 383].

When *protector* is marrying orphan girl to someone, he should do his best the orphan girl not to feel that she has no parents. Namely, here are considered such situations as not to hurt the girl and compulsory marriage. Particularly, the marriage that is harmful for her is not allowed. This is evidenced by

the following document: *"this issue is about that Oyjon beka who is orphan sister of Kurbon[illegible] protector being a related brother, Kurbonniyoz may force his sister with bad intentions to marry [illegible] Hudoybergan but according to the holy shari'ah of our prophet Muhammad (s.a.v) and opinion of [illegible] this compulsory marriage is not allowed"* [3, D. 8.]. So the girl mentioned in the document is an [illegible] her *protector* was her brother – Kurbonniyoz. He was forcing her sister *Oyjon beka* to marry *Hudoybergan*. According to the opinion of *qadis Oyjon beka* was protesting to this marriage. Therefore, this marriage [illegible] not been approved by *qadis*.

Though we don't know further destiny of this girl, we hope that the marriage wasn't allowed. We tried to analyse only one side of this document. However, on the other side of the document it is possible to imagine the whole process. By other words, application to Qadi (judge), study of situation details by specially appointed persons and hearing of witnesses can be added to this process. Besides, [illegible] participants were unknown people, that were not indifferent to girl's destiny, as well as the girl itself.

Conclusion. Making the conclusion, we can say that showing mercifulness towards orphans was formed as specific custom and tradition among Central Asia nations just as in many other nations. This practice has been reflected in oral folk arts – fairy tales, eposes and proverbs. They embodied positive and negative attitude towards orphans and attracted interest and attention of people because of interpretation and value of fantasy. This fact became precondition for their preservation from century to century passing them from mouth to mouth. Fairy tales, eposes and proverbs help us to understand position of orphan child through common popular language. And archive documents tell us about them based on real historical events.

From one side, these two directions seems to be so far apart, but there is inseparable spiritual, religious, social, political and economical liaison between them. Because any historical process occurs in place and time under direct and indirect involvement of people.

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КАМЕНЬ В БАШКИРСКОЙ МИФОЛОГИИ

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Статья подготовлена в рамках выполнения Госзадания ИИЯЛ УФИЦ РАН на 2019 г.

Камень – таш – в тюркской мифологии является одним из первоэлементов мира наряду с землей (ер), водой (һыу), огнем (ут) и воздухом (һауа). Именно поэтому камень башкиры считали живым, думали, что он растет, рожает, спит, отдыхает. Башкиры говорят: «Камни растут ведь, и мелкие камушки растут. И горы растут, если у людей и в мире все хорошо будет. Ночью камни отдыхают, спят. Ночью их нельзя трогать. Это грех. Камни еще рожают, как женщины. Долго они созревают и наконец, раскалываясь, рожают» [14].